

		Plaintiff, but she fails to explain how the electronic signature could only have been placed on the document by Plaintiff. Moreover, Reynoso does not attest as to the process, if any, used to verify an employee's electronic signature through the Paycom link. She also fails to explain who receives the signed onboarding documents, and how an employee's identification is verified as the person who actually signed the documents. Indeed, Reynoso only summarily asserts that the onboarding process "was followed with respect to Plaintiff." (Reynoso Supp. Decl., ¶ 3.) This leaves a critical gap in the evidence in support of the Motion. (See, <i>Fabian, supra</i>, 42 Cal.App.5th at pp. 1069-1070.) Since Defendant has failed to meet its burden of establishing the existence of a valid agreement with Plaintiff, the Motion is denied. The Court need not address issues of enforceability or unconscionability. Defendant is ordered to give notice of this ruling.
105	Garcia vs. Compassionate Heart Senior Care, Inc. 2022-01294409	Motion for Final Approval Plaintiff Monica Garcia's Motion for Final Approval of Class Action and PAGA Settlement is GRANTED. This is a putative wage-and-hour class action and PAGA matter. On November 30, 2022, Plaintiff Monica Garcia, individually and on behalf of all others similarly situated ("Plaintiff"), filed a Class Action Complaint against Defendant Compassionate Heart Senior Care, Inc. dba Home Instead Senior Care ("Defendant"). The Complaint asserts eight causes of action for various wage-and-hour violations of the Labor Code and a violation of the Unfair Competition Law. On September 15, 2023, Plaintiff filed a PAGA-only action against Defendant, as Case No. 2023-01349739. On April 5, 2024, the Court took notice that the two cases are related. On May 20, 2024, Plaintiff filed the Motion for Preliminary Approval of Class Action Settlement. The settlement included Plaintiff's PAGA claims. On October 18, 2024, at the second hearing on the matter, the Court granted the Motion, and the Order Granting Preliminary Approval was entered on October 24, 2024. On February 26, 2025, Plaintiff filed the current Motion for Final Approval of Class Action and PAGA Settlement. The Motion seeks final approval of the Amended Joint Stipulation of Class and PAGA Settlement for the non-reversionary Gross Settlement Amount of \$185,000.00. The putative Settlement Class consists of 298 Class Members comprised of: "All

persons employed by Defendant in California as an hourly paid or non-exempt employees at any time during the Class Period.” The Class Period is defined as the period from June 5, 2018, through the date of Preliminary Approval.”

In addition, the Settlement includes 298 PAGA Members comprised of: “All persons employed by Defendant in an hourly, non-exempt position in California during the PAGA Period.” The PAGA Period is defined as the period from February 3, 2022, through the date of Preliminary Approval.

Pursuant to the Settlement Agreement, if the total number of workweeks during the Class Period exceeded 14,029—i.e., an increase greater than ten percent (10%) of the estimate of 12,754 workweeks—the Gross Settlement Amount would increase proportionally according to the number of additional workweeks above 14,029, or Defendant could choose to end the Class Period the day before the number of workweeks exceeded 14,029. The settlement administrator, ILYM Group, Inc., determined that based on the Class Data provided by Defendant, the 298 Class Members had worked a total of 16,030 workweeks, and therefore, the Escalator Clause was triggered. Accordingly, the Gross Settlement Amount increased by 14.26%, or \$26,387.13, and the new Gross Settlement Amount is \$211,387.13.

On December 2, 2024, the settlement administrator mailed Notice Packets, in both English and Spanish, via U.S. Mail to all 298 Class Members. As of February 20, 2025, a total of eighteen (18) Notice Packets were deemed undeliverable with no forwarding address. As of February 20, 2025, the settlement administrator had received one (1) invalid dispute regarding the number of weeks a Class Member had worked during the Class Period. The settlement administrator did not receive any objections to the Settlement. Three (3) individuals timely requested exclusion from the Settlement and, therefore, are not Participating Class Members. They are: Swenzen Mae Enriquez, Laura Lottman, and Margarita L. Suarez. Accordingly, these individuals are not bound by the terms and conditions of the Settlement Agreement and/or the Order and Judgment as they pertain to the Released Claims. However, these individuals remain bound by the terms and conditions of the Settlement Agreement and/or Order and Judgment as they related to the Released PAGA Claims.

The Court concludes that the \$211,387.13 Class Action and PAGA Settlement is fair and reasonable, and that the notice to the Class was adequate. Accordingly, the Court certifies the above-defined Class for settlement purposed only, and

approves the following specific awards:

- Attorneys’ fees totaling \$70,391.91 to Class Counsel, Wilshire Law Firm, PLC
- Litigation costs totaling \$8,740.74 to Class Counsel, Wilshire Law Firm, PLC
- Administration costs of \$7,950.00 to ILYM Group, Inc.
- Class Representative Service Payment of \$5,000.00 to Plaintiff Monica Garcia
- \$7,500.00 to the Labor and Workforce Development Agency (LWDA) for its share of the PAGA penalties

Pursuant to the Settlement Agreement, Defendant is ordered to separately pay all employer payroll taxes owed on the wage portions of the Individual Class Payments.

The Net Settlement Amount payable to all Class Members is \$109,304.48, and the amount of PAGA Penalties payable to the PAGA Members is \$2,500.00. The average Individual Class Payment is estimated to be \$353.57.

Within five (5) court days of this ruling, Class Counsel must submit a revised Proposed Order with the following corrections:

- The amount of the Class Representative Service Payment must be revised to \$5,000.00;
- The operative Settlement Agreement must be identified by the ROA number of the declaration to which it is attached;
- Paragraph 14 must state that the Court’s continuing jurisdiction is pursuant to CCP § 664.6 and CRC 3.769(h);
- Paragraph 18 must state that the time of the Final Accounting hearing is 2:00 p.m.

Final Accounting is set for November 13, 2025, at 2:00 p.m. in Department CX102. Counsel shall submit the final administrator’s report no later than ten (10) court days prior to the Final Accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to Class Members and PAGA Group Members, and the amount of uncashed funds remitted to the State Controller’s Unclaimed Property Fund. If the settlement funds are not completely disbursed by the report deadline, counsel must request a continuance.

		Plaintiff is ordered to give notice of this ruling, including to the LWDA, and file proof of service within five (5) court days.
107	Lopez vs. Vehicle Protection Specialists, LLC 2020-01174402	Motion for Final Approval Plaintiffs Carmen Lopez and Pete Jaramillo's Motion for Final Approval of Class Action and PAGA Settlement is GRANTED. This is a putative wage-and-hour class action and PAGA matter. On December 14, 2020, Plaintiff Carmen Lopez filed a Class Action Complaint against Defendants Vehicle Protection Specialists, LLC and Daniel Laurent alleging seven causes of action for various violations of the Labor Code. On November 9, 2021, Plaintiff Lopez filed the First Amended Complaint adding Pete Jaramillo as a named Plaintiff. On August 29, 2022, Plaintiffs filed the original Motion for Preliminary Approval of Class Action Settlement and separately filed a document entitled "Joint Stipulation re Class Action and PAGA Penalty Settlement." At the hearing on March 3, 2023, the Court found that it appeared Plaintiffs were attempting to settle a PAGA claim that had not been asserted in the operative First Amended Complaint and was not incorporated by reference in the Joint Stipulation. As a result, the Court continued the matter and ordered briefing on the issue, including an explanation as to the timeliness of any purported PAGA claim. However, Plaintiffs' untimely supplemental filing did not address the deficiencies in the Motion or Joint Stipulation identified by the Court. Therefore, at the second hearing on June 16, 2023, the Court denied the preliminary approval motion, without prejudice, and stated that Plaintiffs could file another amended Complaint and refile a new preliminary approval motion. On August 7, 2023, pursuant to Stipulation and Order, Plaintiffs filed the operative Second Amended Class Action Complaint ("SAC") alleging the same seven causes of action for wage-and-hour violations of the Labor Code, and adding a cause of action for PAGA penalties. On August 11, 2023, Plaintiffs filed a new Motion for